

HOUSE BILL 311

By Darby

AN ACT to amend Tennessee Code Annotated, Title 33;  
Title 37; Title 39 and Title 52, relative to the  
Autism Spectrum Online Protection Act.

WHEREAS, the purpose of this act is to protect autistic young adults between eighteen and twenty-five years of age from online predators who use online platforms to groom, sext, sextort, sexually exploit, traffic, and sexually manipulate individuals who are subject to a conservatorship; and

WHEREAS, there are estimated to be one million ninety-one thousand people living in conditions of modern slavery in the United States. This equates to three and three tenths victims for every one thousand people in the country; and

WHEREAS, a 2022 investigation into violence by the Autism Research Institute found that seventy-five and four tenths percent of participants out of one hundred ten people reported sexual harassment, and almost sixty percent reported experiences of sexual violence compared to fifty-six and four tenths percent and twenty-eight and two tenths percent reported by non-autistic participants; and

WHEREAS, like the general population, female autistic individuals are at higher risk for experiencing sexual victimization and violence. An online survey by the Autism Research Institute found that as many as nine autistic women out of every ten have experienced sexual violence, where seventy-five percent of the two hundred twenty-five study participants reported that their first experience occurred during childhood or adolescence; and

WHEREAS, suicide rates in autistic individuals range from eleven percent to sixty-six percent and significantly more premature deaths are caused by suicide in autistic individuals

than in the general population. Trauma derived from sexual abuse during childhood is a significant and specific risk factor for suicidal ideation in adulthood; now, therefore,

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 52, is amended by adding the following new chapter:

**52-9-101.** This chapter is known and may be cited as the "Autism Spectrum Online Protection Act."

**52-9-102.** As used in this chapter:

(1) "Autistic young adult" means an individual between eighteen (18) and twenty-five (25) years of age who has been diagnosed with an autism spectrum disorder, including, but not limited to, autistic disorder, childhood disintegrative disorder, pervasive developmental disorder, Asperger's syndrome, low-functioning autism, or classic autism;

(2) "Conservatorship" means the same as defined in § 34-1-101;

(3) "Exploit" means to abuse a position of vulnerability, differential power, or trust for unlawful sexual purposes;

(4) "Groom" means to build a relationship, trust, and emotional connection with another with intent to commit an act of exploitation, sexual abuse, sextortion, or trafficking against the other;

(5) "Online platform" means a website, application, or digital service that allows users to interact and communicate with others over the internet;

(6) "Sextortion" is the act of coercing an autistic young adult subject to a conservatorship to create and send an image or video of the young adult engaged in simulated sexual activity that is patently offensive or in sexual activity

for the purpose of extorting money from the young adult by threatening to show the image or video to others if payment is not sent;

(7) "Sexual abuse" means an offense under title 39, chapter 13, part 5;

and

(8) "Trafficking" means the same as "human trafficking offense" is defined in § 39-13-314.

**52-9-103.**

(a) It is an offense for a person to use an online platform to engage in grooming of another who the person knows or reasonably should know is an autistic young adult that is subject to a conservatorship.

(b) A violation of subsection (a) is a Class A misdemeanor.

**52-9-104.**

(a) Online platforms are urged to implement and enforce policies to prevent and report to local enforcement any activities prohibited by § 52-9-103 that target the highly vulnerable population of autistic young adults.

(b) Family members or conservators of autistic young adults that are subject to a conservatorship should have access to tools and resources to monitor and protect the online activities of autistic young adults.

SECTION 2. This act takes effect July 1, 2025, the public welfare requiring it.